The link between the two arose after Bhagat Singh's arrest upon throwing the smoke bombs in the Central Legislative Assembly in New Delhi in 1929 'to make the deaf hear' (as he endearingly put it). This is when he was confined to jail and put on trial. There he joined the hunger strike on 24 June 1929 with fellow inmates such as Jatindra Das, who would eventually die from it. Such was their determination to use the device of a hunger strike as the ultimate tool of non-cooperation that they made the ordinary continuation trial processes difficult to conduct. The government, however, was resolute in its objective of getting a conviction of a death sentence while maintaining as far as possible the sham façade of a trial conducted under the rule of law. To this end, therefore, they proceeded to attempt to pass the Hunger Strike Bill which would enable a trial to proceed, even if the accused in question in a death penalty case was not present in court! This was a travesty of justice of the highest order and the very negation of the rule of law. Yet the government ordained that this could be done if the accused 'has voluntarily rendered himself incapable of remaining before the court'. It made nonsense of the idea of a fair trial if an accused could not even be present in court to defend himself against accusations which would result in the death penalty being meted out to him. It was also quite unprecedented.

At the time, Jinnah was representing Bombay in the Legislative Assembly. In a speech in September 1929, which has rung through the chronicles of time for those who have cared to listen, Jinnah vehemently and yet eloquently opposed the bill. He was not, after all, the highest-paid lawyer of his day in India for nothing. Of all the leading protagonists in the struggle for Independence, from Gandhi to Nehru to Sardar Vallabhbhai Patel, he alone held the distinction of being a highly skilled consummate court-room lawyer. He did not waste this skill. Rising up defiantly in the legislative chamber while others looked on, he proceeded to call the trial a 'farce' and a 'travesty of justice' and expressed the only truism that there was in the government's ill-advised artifice—if the trial continued in the absence of the accused, he 'stands already condemned'. He did not stop there. Jinnah recognized that like him, Bhagat Singh too was fighting for